

CHAP. 39.—An ACT to provide for Dividing the several Counties of this State into Townships.

Approved April 2, 1870.

1. Be it enacted by the general assembly of Virginia, That it shall be the duty of the governor of this commonwealth, as soon after the passage of this act as may be, to appoint in each county of this state five discreet men, citizens of said counties, to lay off their respective counties into townships, as hereinafter provided, and to inform said commissioners forthwith of their appointment.

Governor to appoint five men in each county to lay it off into townships

2. It shall be the duty of said commissioners, any three of whom may act, to proceed without delay to divide and lay off their several counties respectively, into compactly located townships, as nearly equal as may be in territory and population, with the view to the proper sub-division of said townships into school districts, so that there be not less than three nor more than eleven townships in any one county, and so that after three have been formed, no additional townships shall be made containing less than thirty square miles; and for this purpose they are authorized, provided one of said commissioners be not competent to make such survey, to employ a competent surveyor, by whose aid they shall lay off said townships by metes and bounds, and when in their opinion the same is necessary, cause memorial stones to be placed at prominent points on the boundary lines of said townships. Said commissioners shall establish one or more places for opening polls in each township for all elections in this commonwealth, in which the voters in any such township shall have the right to vote; and all other places for opening a poll in any election, except in towns not embraced in such townships, are hereby abolished; and the townships so laid off, and the places so fixed for voting-places, shall be the townships and the voting-places for said county. It shall be the duty of said commissioners to make, at the earliest practicable day, not more than ten days after laying off said townships and completing said surveys, a written report, designating as accurately as they conveniently can, the boundaries of said townships, and designating the same by appropriate names, as the township of _____, in the county of _____, and declaring the place or places established by them in each township for opening polls as hereinbefore provided, together with all other matters deemed pertinent by themselves, make return thereof to the clerks' offices of their several county courts respectively: provided, that no part of any town or city having a separate organization or a population of five thousand or more inhabitants, shall be embraced in any of said townships; and provided, also, that no public highway shall be made the boundary line between townships, unless the commissioners shall designate to which township the said highway, or any section thereof, may belong; and provided further, that before entering upon the discharge of his duties under this act, each commissioner and surveyor shall take an oath or affirmation

Any three may act

Townships to be as nearly equal as possible in territory and population
Number of townships
No additional townships of less than thirty square miles
May employ surveyor

Memorial stones

Precincts

Commissioners' report

Proviso

Public highways

Oath

CHAP. 76.—An ACT to Provide for a General Election.

Approved May 11, 1870.

General elections ; when to be held.

General elections ; when to be held

1. Be it enacted by the general assembly, That there shall be held throughout the state, on the fourth Thursday in May, and on the first Tuesday after the first Monday in November in each year, general elections for all officers required by law to be chosen at such elections respectively.

Special elections ; what and when held.

Special elections ; what and when held

2. Special elections shall be deemed to be such as are held in pursuance of a special law, and such as are held to supply vacancies in any office, whether the same be filled by the qualified voters of the state, or of any county, district, corporation, or township, and may be held at such time as may be designated by such special law, or the proper officer duly authorized to order such election : provided, that all vacancies which are about to occur in office by the expiration of the full term thereof, shall be supplied at the general election next preceding the time at which such term will expire.

Proviso

Term of office ; when to commence.

Term of office ; when to commence

3. The term of office of all state, district, and county officers chosen at a general election, shall commence on the first day of January next thereafter, except it be otherwise provided by the constitution or by this act.

Corporation and township officers

4. The term of office of all corporation and township officers chosen at a general election, shall commence on the first day of July next thereafter, except it be otherwise provided by the constitution or by this act : and provided, that the term of office of any person chosen at a special election to fill a vacancy in any public office, shall commence as soon as he shall qualify for the performance of the duties of the office to which he is elected, and shall be for the unexpired term of such office.

Term of office of person chosen at special election

Notice of elections ; how given.

Notice of election ; how given

5. It shall be the duty of the governor, whenever a special election is ordered by him, to issue his writs of election, designating therein all the offices to be filled at such election, the time such election is to be held, and transmit the same to the sheriff of each county, and the sergeant of each corporation in which such election is to be held, to be by such sheriff or sergeant published by posting copies thereof at each voting place in his county or corporation at least ten days before such election.

When special election is ordered

6. Whenever a special election is ordered to fill a vacancy in any office, the regular time for filling which is the annual May election, it shall be the duty of the officer ordering such elec-

- Proviso** hold their offices for the term of four years: provided, that in counties containing less than fifteen thousand inhabitants, the clerk of the county court shall also be the clerk of the circuit court.
- Township officers** 14. In each township of the commonwealth, there shall be chosen by the qualified voters of the townships respectively, at the general election to be held in May, of the year one thousand eight hundred and seventy, and annually thereafter, one supervisor, one assessor, one township clerk, one collector, one commissioner of roads, and one overseer of the poor, who shall hold their offices for the term of one year.
- Justice of the peace and constable; their term of office** 15. In each township of the commonwealth there shall be chosen annually, at the general election in May, by the qualified voters of the respective townships, one justice of the peace and one constable, who shall hold their offices for the term of three years: provided, that at the general election to be held in May of the year one thousand eight hundred and seventy, there shall be elected three justices and three constables in each township, who shall hold their offices one, two and three years, respectively (the terms of each to be decided by lots cast by the commissioners of election).
- Proviso**
- Clerk of corporation court** 16. There shall be chosen by the qualified voters of each city and town in the commonwealth containing a population of five thousand inhabitants, at the general election in May of the year one thousand eight hundred and seventy, and every sixth year thereafter, one clerk of the corporation or hustings court, who shall also be clerk of the circuit court of such city or town, if there be a circuit court, who shall hold his office for the term of six years: provided, that in cities and towns containing a population of thirty thousand or more, there may be elected at the same time and for the same term, an additional clerk, who shall be the clerk for the circuit court of such city or town, if there be such court: and provided also, there shall be elected at the same time and for the same term, a clerk of the chancery court of the city of Richmond.
- Term of office**
- Proviso**
- Clerk of chancery court of Richmond**
- Mayor and other city officers** 17. There shall be chosen by the qualified voters of each city and town in the commonwealth containing a population of five thousand inhabitants, at the general election to be held in May of the year one thousand eight hundred and seventy, and every second year thereafter, one mayor, one commonwealth's attorney, one city or town sergeant, and one commissioner of the revenue, and as many councilmen or trustees as are now or may hereafter be allowed by law, who shall hold their offices for the term of two years.
- Term of office**
- City treasurer** 18. There shall be chosen by the qualified voters of each city and town of the commonwealth, containing a population of five thousand inhabitants, at the general election to be held in May, of the year one thousand eight hundred and seventy, and every third year thereafter, one city or town treasurer, as the case may be, who shall hold his office for the term of three years.

CHAP. 187.—An ACT for the Payment of the Funeral Expenses of J. W. D. Bland, late Senator from the Fourteenth District.

Approved July 8, 1870.

1. Be it enacted by the general assembly, That the auditor of public accounts be and he is hereby authorized and required to issue his warrant upon the treasury, in favor of Thomas P. Jackson, for the sum of fifty-two dollars, payable out of any money in the treasury not otherwise appropriated, for the payment of the funeral expenses of James W. D. Bland, late senator from the fourteenth district.

Providing for funeral expenses of the late Senator Bland

2. This act shall be in force from its passage.

Commencement

CHAP. 188.—An ACT Prescribing the Duties and Compensation of certain Township Officers.

Approved July 11, 1870.

1. Be it enacted by the general assembly, That all township officers elected on the fourth Thursday in May, after the year eighteen hundred and seventy, shall, on or before the first day of July next after their election, qualify by taking the oaths of office before the judge for the circuit or county court of his county, either in term time or in vacation; and each township officer of whom a bond is required, shall, at the time of his qualification, enter into and acknowledge before the court or judge before whom he qualifies, such bond, with sureties, to be approved by such court or judge; which bond shall conform to the requirements and be subject to the provisions of section eight, chapter thirteen, of the Code of Virginia (eighteen hundred and sixty), and after being acknowledged before said court or judge, shall be entered of record in the county court of the county in which such officer resides, and if said qualification and acknowledgment be in vacation, the fact thereof shall be certified, and the bond returned by said judge to the clerk of the county court, to be by him recorded as aforesaid, and the order of qualification and acknowledgment shall be entered as a vacation order; and for any failure on the part of the clerk to perform the duties required of him by this section, he shall forfeit not less than fifty nor more than one hundred dollars.

Township officers; how they shall qualify

Their bonds

Board of supervisors.

2. The supervisors of the several townships in each county shall constitute the board of supervisors for said county, and by the name of The Board of Supervisors of the county of [here insert the name of the county], may sue or be sued in relation to all matters connected with their duties as such board of supervisors.

Board of supervisors